# CITY OF OPA-LOCKA

**"The Great City"**

**CLERK'S ACTION SUMMARY MINUTES**
**REGULAR COMMISSION MEETING**
**WEDNESDAY, February 13, 2019**
**7:00 P.M.**
**Sherbondy Village Auditorium**
**215 Perviz Avenue**
**Opa-locka, FL 33054**

## 1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, February 13, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

## 2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

## 3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

## 4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

## 5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

The city commission presented commendations to all of the business owners who gave contributions for the annual Christmas Toy Give Away held at Sherbondy Village Community Center.

## 6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-3 (Mayor Pigatt).

## 7. APPROVAL OF AGENDA:

It was moved by Commissioner Burke, seconded by Commissioner Kelley to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke Yes

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| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

## 8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – November 14, 2018

It was moved by Vice Mayor Davis, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of November 14, 2018.

There being no discussion, the motion passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

Regular Commission Meeting Minutes – January 23, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to approve the minutes from the Regular Commission Meeting of January 23, 2019.

There being no discussion, the motion passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

## 9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

## 10. PUBLIC PRESENTATION:

## 11. CITIZENS' INPUT:

Marc Cooper, 6801 SW 75th Terrace, Miami, FL, said there is something that needs to be done about the people who go to jail and then come out and cannot be hired because they have a record. He went to jail previously and if it wasn't for the fact that he owned his own business, he might not be able to find work. He asked the commission to look into the matter because some of the tax dollars should go toward this effort.

Denise Perez, 7900 NW 166th Street, Miami Lakes, FL, said her family has owned the property on 2360 NW 150th Street for twenty years. They were recently informed by Mr. Cook that they have seventy thousand dollars in unpaid fines and they had no knowledge of this. They are now asking the City for help as this is a huge problem for them.

Natasha Ervin, 670 Dunad Avenue, Opa-locka, FL, said she had been volunteering at food drives for years and they took a poll at the recent event and out of 100 families, only 10 of them are from Opa-locka. She asked the commission to put the signs back up so the people can know the food programs are available to them.

Andrew Herman, 1770 Opa-locka Blvd, Opa-locka, FL, said the lake near Pine Tree Drive is running over and the water is breeding mosquitos. He is concerned that a Zika outbreak may start. He also asked why the City is so dark and there aren't enough lights at night. He asked the commission to look into the matter.

Chris Bartlett, 1861 Washington Avenue, Opa-locka, FL, thanked the City for working on the roads, they are looking much better. He asked if street bumps can be installed on some roads because cars are driving through the City too fast. Also, notice should be put out for when the street sweeper is making the rounds because the residents are parked on the side of the road and the sweeper is going down the middle as opposed to cleaning out the gutters.

Commissioner Burke said he was not aware that Code Enforcement was a revenue generator and it is not fair to cite owners unnecessarily without them being properly noticed.

Commissioner Kelley agreed with Commissioner Burke and asked the manager to look in to the issue with the lights as it does become too dark at night. A study will need to be conducted to determine the feasibility of installing speed bumps in certain areas.

Commissioner Bass said she is in agreement with the signage and it is true that maybe five percent (5%) of the residents are aware and benefit from the program. It needs to be noticed in a timely manner so everyone can take advantage of it.

Mayor Pigatt asked the manager to quickly respond to the citizen's concerns.

Acting City Manager Daughtrey said he will have someone from staff review the matter of the code violations and provide him with a report. The City reached out to FPL regarding the lights and was told they are working on it. This is something he is following closely because the City is paying for the lights.

## 12. ACTION ITEMS:

**1 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REQUIRING OWNERS OF PROPERTY THAT HAVE RECEIVED CITY COMMISSION APPROVAL FOR A SPECIFIC USE RECEIVE PERMISSION FROM THE CITY COMMISSION TO CONSIDER ALTERNATIVE USES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by Commissioner Kelley*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Bass for discussion.

Mayor Pigatt asked for clarity on the item from the sponsor. He is in support of it, but wants to know the intent.

Commissioner Kelley said people have been coming before the commission for years to purchase properties for one reason and end up using it for something else. This resolution will allow the City to enforce its laws and stop this ongoing problem from continuing.

Commissioner Burke agreed.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

**13. CONSENT AGENDA:**

**1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE CITY OF LAUDERHILL'S CONTRACT, AND ENTER INTO AN AGREEMENT WITH PIONEER CONSTRUCTION MANAGEMENT SERVICES, INC., FOR MINOR ASPHALT INSTALLATION AND REPAIR IN AN AMOUNT NOT TO EXCEED SEVENTY THOUSAND DOLLARS ($70,000.00), IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

**2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE FINAL RESOLUTION OFF HOLMES VS CITY OF OPA-LOCKA, FLORIDA, CASE NUMBER 2018-42660 CA 01, PURSUANT TO COURT ORDER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Attorney*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

**14. NEW ITEMS:**

**15. PLANNING & ZONING:**

**A. HEARINGS:**

**B. APPEALS:**

## 16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

### A. FIRST READING ORDINANCE(S):

**AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 15-31, ARTICLE, X SIGN REGULATIONS BY EXTENDING THE DEADLINE FOR ALL NON-CONFORMING SIGNAGE TO BECOME FULLY COMPLIANT BY SIX (6) MONTHS; PROVIDING FOR REPEALER, SEVERABILITY, CODIFICATION AND AN EFFECTIVE DATE.** *Sponsored by Commissioner Kelley*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Mayor Pigatt said he received multiple concerns from business owners throughout the City and believes a review needs to be done so everyone can come together and see what can be done to improve the legislation. He asked for a workshop to ensure the public is aware of the matter.

Commissioner Kelley asked the mayor if he would like to insert that as a friendly amendment and asked the attorney if this was possible.

City Attorney Brown said it is a policy item and needs to be voted on by the majority.

Acting City Manager Daughtrey said he will direct staff from Code Enforcement to give notices to the owners, but not to issue any additional citations until the matter is resolved.

City Attorney Brown said any executive orders have to be brought before the commission and be voted on in order to be in effect.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

### B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

### C. RESOLUTIONS:

## 17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said the City milled some areas this past week in certain areas around the City and he noticed a lot of trash piles in and around the City. He directed Code Enforcement to give notice to the property owners to remove the piles within three (3) days or

the City will take a picture of the piles, remove it and cite the owners. He is going to Tallahassee tomorrow to meet with the Chief Inspector General, JLAC, and the people from the state revolving loan fund; this trip is for the purpose of requesting funds for addressing issues in the City. He said State representative James Bush has put in for funding for four (4) projects on behalf of the City and he is awaiting a response on the matter.

Commissioner Kelley asked about the tenants in Town Center One and if they were up to date with the rent. He wants to make sure Sherbondy Village was available for the community to use and that all staff is being held accountable for their actions because the citizens expect a certain level of services for their tax dollars.

Commissioner Burke said there was an accident the other day and no police officers were available to investigate and this should not be so; the police department should be staffed so that Metro Dade does not have to come in and assist. This needs to be resolved before the City has a big problem on its hands.

Mayor Pigatt asked the manager to explain the reason for traveling to Tallahassee without him when the legislation was passed at the previous meeting for him to accompany the manager.

Acting City Manager Daughtrey said the trip is necessary at this time and this is the only appointment he could get with the Chief Inspector General and JLAC. The mayor, however, is not able to attend on such short notice. He may also need to go to Tallahassee next month because two (2) of the four (4) items requested by the state representative will be up for discussion.

Mayor Pigatt said he was glad when Commissioner Kelley sponsored the legislation to travel last month, but he just learned about the meeting last week and that is why he is unable to attend. He hopes that in the future he will be informed in a timely fashion so that he is able to attend.

Commissioner Kelley informed the mayor that the City has a vice mayor and commissioners to go in his place for this reason. He informed him that Tallahassee can call at any time with no notice and the City will need to be available.

Mayor Pigatt agreed with Commissioner Kelley.

City Attorney Brown announced that an executive session be held to discuss pending litigation with the City.

Mayor Pigatt suggested next Wednesday, February 20, 2019 at 5:00 p.m. for the session.

The dais agreed upon the date and time.

Mayor Pigatt thanked the manager and the Public Works Department for milling over seven (7) miles of streets in and around the City. He has met with the manager regarding the audits and the timeline for completion is constantly being pushed back. He is still awaiting a report for when the audits will be complete. He said progressive disciplinary action needs to be taken when staff is not doing what is expected of them in a timely manner. If he needs to bring a resolution to reflect this, he will.

Commissioner Kelley said he had the pleasure to attend a retirement party for the OL-CDC and it was nice that the employees were recognized. He invited the residents to come out to Meet Me Monday and voice their concerns. Feeding South Florida will be held on this coming Friday and is free and open to the public and all residents. Walk-In Wednesday is also held every Wednesday in his office and the community is free to meet with him without an appointment.

**18. OFFICIAL BOARD REPORTS:**

Vice Mayor Davis appointed Christopher Bartlett to the Community Relations, Recreation and Activities Board.

**19. MAYOR/COMMISSION REPORT:**

**20. OFFICIAL BOARD APPOINTMENTS:**

**21. ADJOURNMENT:**

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Commissioner Kelley to adjourn the meeting at 8:14 p.m.

MAYOR

ATTEST:

CITY CLERK